

3.

CASE #	CASE NAME	HEARING NAME
CVPS2502826	PARKS VS FCA US LLC	PLAINTIFF'S MOTION TO COMPEL MEDIATION PURSUANT TO CCP 871.26

Tentative Ruling: No tentative. Hearing will be conducted on July 28, 2026 at 8:30 a.m. in Department PS2.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2508325	GALLAGHER VS RV COUNTRY INC.	MOTION TO COMPEL PLAINTIFF LESLIE VAUGHN GALLAGHER FURTHER RESPONSES TO FORM INTERROGATORIES, SET ONE AND SPECIAL INTERROGATORIES, SET ONE BY FORREST RIVER INC.

Tentative Ruling: Granted.

No opposition filed.

Responding party is ordered to serve verified responses to Form Interrogatories, Set One, Nos. 1.1, 6.4, and 14.1. Responding party is further ordered to service verified responses to Special Interrogatories, Set One, Nos. 24, 30, 40, and 41 within 30 days of service of notice

Responding party is ordered to pay attorney's fees and costs to moving party in the amount of \$960.00 within 30 days of service of notice. \$3,200.00 per hour is excessive.

Prevailing party ordered to give notice pursuant to CCP §1019.5.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2600522	TAYLOR VS PEREZ	DEMURRER ON 1ST AMENDED COMPLAINT OF TENNLEY TAYLOR BY OLGA M PEREZ

Tentative Ruling: Sustained in part.

Sustained without leave to amend as to 1st cause of action. Overruled as to 2nd and 3rd causes of action.

Moving Defendant to file their answer to operative 1st Amended Complaint within 20 days of this order becoming final.

Moving Defendant to provide notice pursuant to CCP 1019.5.

On February 5, 2026, Plaintiff filed a Verified Complaint to Quiet Title. By filing this Complaint, Plaintiff sought a judicial determination of ownership of a manufactured home

at issue due to conflicting and adverse claims arising from abandonment, outdated administrative registration records, and unrecorded transfers. On May 27, 2026, the Court sustained a demurrer to the Complaint, with leave to amend. (See Comprehensive minute order dated May 27, 2026.) The Court's prior ruling stated that the original quiet title pleading failed because Plaintiff did not plead her own title or a recognized basis for title. The ruling also recognized that Defendant's arguments concerning abandonment, lockout, ownership/ possession, damage, and issue/ claim preclusion involved factual and preclusion issues that could not be resolved on demurrer.

On June, 4, 2026, Plaintiff filed a First Amended Complaint for (1) Determination of Interests Incidental to Restitution (CCP § 760.020); (2) Equitable Lien/Unjust Enrichment; (3) Constructive Trust and Equitable Lien as Remedies to Prevent Unjust Enrichment Limited to Monetary Security. The FAC changed the case posture. It does not ask the Court to award Plaintiff possession or title for purposes of ownership. Instead, it seeks restitution equitable lien/unjust enrichment, and constructive trust/equitable lien as remedies to prevent unjust enrichment and secure limited monetary relief.

Defendant contends that (1) Plaintiffs claims for unjust enrichment, restitution, and equitable lien fail Plaintiff Was an unlawful occupant with no right to possess the property; (2) Plaintiff cannot invoke the good faith improver doctrine because she was not a good faith improver; (3) Plaintiff's Claims are Barred by Res Judicata and Collateral Estoppel Based on the Unlawful Detainer Judgment; (4) Plaintiff's 1st cause of action for determination of interests incidental to restitution fails to state a cause of action; (5) Plaintiffs Claims Are Barred by Unclean Hands; (6) Plaintiff Has Not and Cannot Allege Facts Showing Defendants Were Unjustly Enriched; (7) the First Amended Complaint is uncertain.

In Opposition, Plaintiff contends (1) The Demurrer Improperly Relies on Disputed Factual Accusations and Extrinsic Narratives; (2) Defendant Attacks Adverse Possession and Possession Theories That the FAC Does Not Assert; (3) Plaintiff Is Not Attempting to Evade the Unlawful Detainer Judgment; the FAC Seeks 8 Different Relief and the UD Appeal Remains Pending; (4) Ownership, Control, HCD Records, Hilda Raffull, and Antonio Rotella Are Factual Predicates to Restitution and Equitable Relief, Not a Disguised Quiet Title Claim; (5) The FAC Adequately Pleads Restitution/ Unjust Enrichment at the Pleading Stage; (6) The FAC Adequately Pleads an Equitable Lien/ Constructive Trust Remedy, or at Minimum Should Be Granted Leave to Clarify the Label; (7) Good Faith Is Pleaded and Cannot Be Negated on Demurrer by Defendant's Disputed Facts; (8) Unclean Hands Cannot Be Decided on Demurrer Based on Defendant's Factual Accusations; (9) CCP Section 760.020 Does Not Defeat the FAC Because Plaintiff No Longer Seeks Quiet Title; Alternatively, Leave to Clarify Should Be Granted; (10) the FAC is not uncertain.

Demurrer

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts

which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal. 4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A special demurrer lies where a pleading is uncertain, ambiguous and unintelligible. (CCP § 430.10(f).) Demurrers for uncertainty, however, are typically sustained where the defendant cannot reasonably determine what issues must be admitted or denied, or what claims are directed against him. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Request for Judicial Notice (RJN)

With the Opposition, Plaintiff asks the Court to take judicial notice of the Court's ruling on the prior demurrer, to the Complaint. The request states that this ruling is attached as Ex. 1 but it is not. Since this ruling is on the register of actions, the Court will GRANT this request.

Plaintiff also asks the Court to take judicial notice of the existence and pendency of the unlawful detainer appeal, Riverside County Superior Court 2 Appellate Division Case No. APRI2600033, arising from the unlawful detainer matter referenced by Defendant in the demurrer. Plaintiff requests judicial notice of the existence and pendency of the appeal, not the truth of any disputed factual statements in that case. GRANTED

Plaintiff claims he is not alleging quiet title anymore.

Defendant accuses Plaintiff essentially of trying to allege a quiet title action again, even though the Court already sustained the prior demurrer to his quiet title claim. Defendant claims that the FAC is really trying to raise ownership/title interests again. Plaintiff, however, explains that Defendant cannot defeat a restitutionary claim at demurrer by accusing Plaintiff of destroying the very work Plaintiff alleges she paid contractors and others to perform. Whether any improvements remained, whether Defendant retained a benefit, whether later damage occurred, and who caused any later condition are factual disputes.

Defendant argues Plaintiff cannot establish adverse possession after approximately one year. However, that argument is directed at Plaintiff's original quiet-title-oriented complaint, not the operative FAC. Plaintiff does not rely on adverse possession as the basis for the FAC. Nor does Plaintiff seek possession of the manufactured home or title for purposes of ownership.

To the extent Defendant continues to argue that Plaintiff must plead title or adverse possession, that was the issue addressed by the Court's prior ruling on the original complaint. Plaintiff amended to remove that theory. The operative pleading now asks whether Defendant may retain benefits from Plaintiff's alleged expenditures without restitution or equitable relief.

1st Cause of Action - Determination of Interests Incidental to Restitution (CCP § 760.020)

Plaintiff purports to bring her First Cause of Action under CCP § 760.020, which she characterizes as "Determination of Interests Incidental to Restitution." However, section 760.020 is part of the quiet title statute and provides:

"In an action brought under this chapter, the court may ... determine any question arising in the action and necessary to a determination of the rights of the parties 19 or to a complete settlement of all questions of title."

CCP § 760.020 is a procedural provision that allows courts to resolve ancillary issues in quiet title actions. It does not create an independent cause of action for restitution or equitable lien. Defendant is right that Plaintiff cannot invoke section 760.020 to bootstrap a restitution claim into a quiet title framework, particularly after this Court sustained a demurrer to her original quiet title complaint. SUSTAINED

2ND and 3rd Causes of Action - Equitable Lien/Unjust Enrichment and Equitable Lien

Defendant claims that despite Plaintiffs protestations that she "does not seek adjudication of title for purposes of ownership," her allegations make clear that she is challenging Defendant's ownership interest and asserting her own competing interest. Defendant contends that Plaintiff alleges an "equitable interest," "equitable lien," and "restitutionary interest" in the property based on her unauthorized expenditures. According to Defendant, these allegations are functionally identical to a quiet title claim. Plaintiff seeks a judicial determination that she has a legally enforceable interest in Defendant's property that is superior to Defendant's ownership interest to the extent of \$28,340.00. This is a challenge to title, according to Defendant, regardless of the label Plaintiff applies.

Plaintiff, on the other hand, contends that claims for quiet title and adverse possession have been removed from the pleading since the Court ruled on the prior demurrer. The FAC does not ask the Court to award Plaintiff possession or title for purposes of ownership. Instead, it seeks restitution, equitable lien/unjust enrichment, and constructive trust/equitable lien as remedies to prevent unjust enrichment and secure limited monetary relief. Based on what has been presented, the Court must overrule the demurrer to the second and third causes of action for pleading purposes.

Matters outside scope of demurrer

Defendant once again tries to take this matter outside the scope of demurrer by bringing in extrinsic matter in a seeming attempt to litigate this action at the pleading stage. The court will not address these numerous allegations.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2600896	ROSE VS SPENCER FOOD SERVICES, INC.	DEMURRER ON CROSS- COMPLAINT OF SPENCER FOOD SERVICES, INC. BY DENISE BARRIER

Tentative Ruling: Sustained.